

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER-----
In the Matter of the Application of
YORKTOWN ESS, LLC

Petitioner,

- against -

TOWN OF YORKTOWN
ZONING BOARD OF APPEALS,

Respondent,

For An Order and Judgment Pursuant to Article 78
of the Civil Practice Law and Rules-----
McGoey, J.

The following papers e-filed on the New York State Courts Electronic Filing System (NYSCEF) were considered in connection with this petition by YORKTOWN ESS, LLC against the TOWN OF YORKTOWN ZONING BOARD OF APPEALS, for relief pursuant to Article 78 of the New York State Civil Practice Law and Rules (CPLR):

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Petitioner seeks annulment of the Town of Yorktown Zoning Board of Appeals (“ZBA”) January 27, 2026 denial of its use-variance application for a 5 MW Battery Energy Storage System (“BESS”) facility, arguing the determination was affected by legal error, arbitrary and capricious reasoning, and unsupported findings. Petitioner contends that the proposed BESS facility constitutes public-utility infrastructure under controlling New York precedent, requiring application of the Public Utility Variance Standard (“PUVS”) rather than Town Law § 267-b’s unnecessary-hardship test. Petitioner contends the record demonstrates that the BESS facility meets all elements of the PUVS. Petitioner also seeks attorneys’ fees and costs.

Respondent argues Petitioner is not a public utility and therefore PUVS does not apply. Respondent contends the ZBA properly applied Town Law § 267-b’s unnecessary-hardship test and acted rationally in denying the application. Respondent maintains that even if additional analysis is required, the sole appropriate remedy is remand to the ZBA, not mandamus or judicial substitution of judgment. Respondent also argues attorney’s fees are unavailable.

As set forth below, the Court concludes that the proposed BESS facility constitutes a public-utility use under controlling New York authority and that the ZBA erred as a matter of law by applying the unnecessary-hardship test rather than the PUVS. The matter is remanded for a new determination applying the correct legal standard.

Relevant Facts and Procedural History

Petitioner Yorktown ESS, LLC seeks approval to construct a 5-MW BESS facility at 3666 Old Yorktown Road in the Town of Yorktown. The proposed facility would interconnect with the Con Edison distribution system pursuant to an Interconnection Agreement executed on December 2, 2024, and supported by a Con Edison Hosting Capacity Map and a Coordinated Electric System Interconnection Review (“CESIR study”) (Petition Ex. N; R00027–00041). These materials reflect that the project is technically feasible, is supported by grid-capacity analysis, and underwent the State-mandated interconnection approval process.

On April 11, 2024, Petitioner initiated the zoning review process with Town planning officials. (Petition ¶27). At that time, the Town Code permitted Tier 2 BESS facilities subject to a special use permit and site plan approval (Petition ¶28). Petitioner thereafter submitted a pre-preliminary application to the Planning Board on September 25, 2024 and participated in meetings and a site visit throughout late 2024 (Petition ¶¶33–38). On January 28, 2025, Petitioner submitted a combined preliminary/final site plan application (Petition ¶36).

While Petitioner’s application was pending before the Planning Board, the Town Board adopted Local Law 10-2024, a moratorium on all BESS applications, on October 1, 2024 (Petition ¶39). Despite objections from both the Westchester County Planning Board and the Town Planning Board the Town Board subsequently adopted Local Law 10-2025 on May 20, 2025, banning Tier 2 BESS facilities town-wide (“BESS Ban”) (Petition ¶¶40–50). As a result, Petitioner’s previously permitted use became prohibited.

Following adoption of the ban, on July 3, 2025, Petitioner sought a zoning determination from the Building Inspector who issued a Notice of Denial on July 8, 2025 stating that the proposed BESS facility constituted a prohibited Tier 2 use and required a use variance from the ZBA (Petition ¶¶52–53).

On July 18, 2025, Petitioner submitted its use-variance application to the ZBA, supported by extensive technical, environmental, safety, and interconnection documentation, including the Hosting Capacity Map, Coordinated Electric System Interconnection Review (“CESIR”) study, Interconnection Agreement, Fire Code compliance materials, and expert reports from Energy Safety Response Group (“ESRG”) (Petition ¶¶55). Petitioner asserted that the BESS facility constitutes public-utility infrastructure and that the variance must be evaluated under the PUVS.

The ZBA held public hearings on September 11, 2025; October 23, 2025; and December 11, 2025 (R00021; R00024; Petition ¶¶66–80). Petitioner submitted additional materials addressing fire safety, flooding, environmental concerns, and grid constraints. The Westchester County Planning Board submitted written comments supporting the granting of a variance and describing the BESS facility as an important public utility use (R00018–00019; Petition Exs. H, S).

On January 22, 2026, the ZBA voted to deny the variance. In its written Resolution filed January 27, 2026, the ZBA applied Town Law § 267-b’s unnecessary-hardship test and concluded Petitioner had not met its burden under that standard (R00002–00003). Respondent’s Answer confirms that the ZBA did not apply the public-utility variance standard (Verified Answer ¶ 111).

This proceeding followed.

Conclusions of Law

Under CPLR Article 78, judicial review examines whether an agency determination is affected by an error of law, arbitrary or capricious, or an abuse of discretion. Whether a proposed use constitutes public-utility infrastructure for zoning purposes is a legal determination governed by New York precedent. The central question here is whether the ZBA applied the correct legal standard.

In *Consolidated Edison Co. v. Hoffman*, 43 N.Y.2d 598 [1978], the Court of Appeals held that when a public-utility provider seeks approval for facilities necessary to furnish safe and adequate service to its customers, local zoning boards may not apply traditional, non-utility variance requirements, because such requirements do not account for the essential and location-dependent nature of utility infrastructure. Under New York zoning law, *Hoffman* establishes that a “public utility” is not limited to entities directly selling electricity or water to consumers, but broadly includes infrastructure essential to the provision of safe and adequate public service, particularly where the facility operates within a comprehensive state regulatory framework and must be sited according to system-wide technical or engineering constraints rather than ordinary land-use preferences. Public-utility facilities are therefore defined by their essential

role in sustaining utility service, their heavy regulation, and their inherent location-dependent function, such as the need to connect to specific transmission or distribution points. Reflecting these characteristics, the *Hoffman* Court emphasized that a utility seeking zoning relief must satisfy a distinct, more flexible showing: (1) that the proposed facility is a public necessity required to render safe and adequate service, and (2) that there are compelling reasons, economic or otherwise, making the proposed site more feasible than alternatives.

New York courts have repeatedly reaffirmed and broadened *Hoffman*'s principles as utility infrastructure has evolved, applying its public-utility variance framework to a wide range of essential, technically constrained infrastructure. In *Cellular Telephone Co. v. Rosenberg*, 82 N.Y.2d 364 [1993], the Court of Appeals held that wireless telecommunications facilities qualify as public-utility uses because their infrastructure is indispensable to public convenience and subject to significant technological siting constraints, making the traditional unnecessary-hardship test inappropriate. The Appellate Division has applied the same reasoning to water-system infrastructure (*United Water New Rochelle v. Eastchester ZBA*, 254 A.D.2d 490 [2d Dep't 1998]) and electrical substations (*Niagara Mohawk Power Corp. v. City of Fulton*, 8 A.D.2d 523 [4th Dep't 1959]), recognizing that utility facilities often must be located where engineering or system-capacity realities allow. Most recently, *Matter of Freepoint Solar LLC v. Town of Athens ZBA*, 234 A.D.3d 127 [3d Dep't 2024], confirmed that renewable-energy generation interconnected with incumbent utility systems falls squarely within the class of public-utility uses governed by the PUVS, because such facilities provide essential energy-system services and face location-specific grid constraints.

Here, the record demonstrates that the proposed BESS facility functions as an integral component of energy-system infrastructure essential to the safe and adequate operation of the electric grid, is subject to extensive State regulation, and must be sited in locations dictated by utility-grid capacity—characteristics that place it squarely within the category of public-utility uses governed by the PUVS articulated in *Hoffman* and its progeny. Petitioner's submissions show that the facility provides essential grid services by storing and dispatching electricity, enhancing reliability, supporting renewable-energy deployment, and reducing peaker-plant emissions. The Hosting Capacity Map and CESIR study confirm that the facility must be located at a specific interconnection point capable of supporting such infrastructure, while the Interconnection Agreement and expert analyses demonstrate the PSC-regulated interconnection processes and broad State oversight applicable to BESS facilities. These functions are materially indistinguishable from the utility-system operations recognized in *Hoffman*, *Niagara Mohawk*, *United Water*, and *Freepoint Solar* as constituting public-utility uses. New York's Climate Leadership and Community Protection Act and the Public Service Commission's Energy Storage Orders expressly recognize battery-energy-storage facilities as integral components of the State's regulated electric-utility framework, further confirming that such facilities constitute public-utility infrastructure under New York zoning law. The Westchester County Planning Board and the Town Planning Board likewise characterized BESS facilities as essential components of the utility system, further aligning the proposed use with the established public-utility category.

Whether a proposed land use qualifies as a public-utility use for zoning purposes is a legal question governed by New York precedent, not a factual determination made at the discretion of the ZBA, and therefore warrants no deference to the agency's contrary characterization. The Court therefore concludes that the proposed BESS facility is public-utility infrastructure for zoning purposes. Respondent's contrary position relies on distinctions that New York courts have repeatedly rejected in applying the *Hoffman* Court's framework to evolving utility-system infrastructure.

Because the BESS facility qualifies as a public-utility use, the ZBA was required to apply the PUVS. Once a proposed use is properly classified as public-utility infrastructure under controlling New York law, application of the PUVS is mandatory rather than discretionary. By applying Town Law § 267-b's unnecessary-hardship test instead, the ZBA committed an error of law. Where an agency applies an incorrect legal standard, annulment and remand are appropriate (see, *Khan v. N.Y.S. Div. of Hous. & Cmty. Renewal*, 186 A.D.3d 602 [2d Dep't 2020], *Burke's Auto Body, Inc. v. Ameruso*, 113 A.D.2d 198 [1st Dep't 1985], *Skorin-Kapov v. State Univ. of N.Y. at Stony Brook*, 281 A.D.2d 632 [2d Dep't 2001]). Application of the Public Utility Variance Standard's two-part test is a factual inquiry committed to the ZBA on remand; this Court determines only the correct legal standard.

The matter must therefore be remanded to the ZBA for reconsideration under the Public Utility Variance Standard.

Based on the foregoing, it is hereby

ORDERED, that the January 27, 2026 determination of the Town of Yorktown Zoning Board of Appeals is **ANNULLED** because it applied an incorrect legal standard to a public-utility use; and it is further

ORDERED, that this matter is **REMANDED** to the Town of Yorktown Zoning Board of Appeals to conduct a new use-variance determination applying the Public Utility Variance Standard consistent with *Hoffman*, *Rosenberg*, *United Water*, *Niagara Mohawk*, and *Freepoint Solar*; and on remand, the ZBA shall evaluate the application solely under the Public Utility Variance Standard and shall not apply Town Law § 267-b; and it is further

ORDERED, that upon remand, the ZBA shall issue a new written determination supported by findings in the record; and it is further

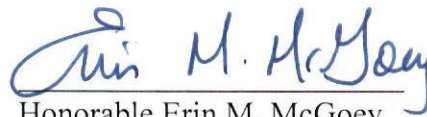
ORDERED, that Petitioner's request for mandamus compelling approval of the variance is denied without prejudice, pending the ZBA's reconsideration under the correct standard; and it is further

ORDERED, that all other relief sought by the parties, including attorney's fees, is denied without prejudice.

ORDERED that within ten (10) days of the date hereof, petitioner shall serve a copy of this Decision and Order with notice of entry upon all parties and file proof of service on NYSCEF.

This constitutes the Decision and Order of this Court.

Dated: White Plains, New York
July 16, 2026



Honorable Erin M. McGoe
Acting Justice of the Supreme Court

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CLERK OF THE COURT